

		property and that negative equity would only grow if the court were to use the appraisal offered by Debtor. The court acknowledges Creditor raises a number of questions regarding the validity of the second deed of trust. Nonetheless, as the court pointed out in its August 6, 2026 ruling, the court "lacks the authority to evaluate the validity of any recorded lien in connection with these proceedings. Even an apparently fraudulent lien must be provided for in the order of sale if it is superior to the judgment creditor's lien. The creditor's recourse is to file a fraudulent conveyance action for a determination the lien in void." (See Ahart, Cal. Prac. Guide: Enf. Judgment & Debts (The Rutter Group 2026) ¶9:1156, citing <i>Kahn v. Berman</i> (1988) 198 Cal.App.3d 1499, 1509, fn. 11.) The court also must keep in mind the ongoing nonjudicial foreclosure proceedings that have been initiated by the holder of the first deed of trust. Based on the foregoing, the court concludes there is insufficient equity in the property and therefore declines to issue an order for sale of the dwelling. Before finalizing the court's ruling, the court notes neither Debtor nor Indra M. Gandhi (counsel for holder of the second deed of trust, Jiten Gandhi, and Sanjay Shah) filed any proof of service showing the declarations and other documents they filed after the August 6, 2026 hearing were served on Creditor. As such, the court will need to confirm service of those documents. <u><i>Evidentiary Objections:</i></u> Creditors filed evidentiary objections to the declarations of Jiten Gandhi and Sanjay Shah filed on behalf of Debtor. As to the objections to the Gandhi declaration, objection numbers 1-3, 6-9, 13, and 15 are OVERRULED and objection numbers 4, 5, 10-12, and 14 are SUSTAINED. As to the objections to the Sanjay declaration, objection numbers 1-6 are OVERRULED. Creditors' counsel is ordered to give notice of this ruling.
5.	<i>E Mortgage Capital, Inc. vs. Perez</i> 2021-01213474	Before the court is the motion by attorney Patricia Rodriguez to be relieved as counsel of record for defendant Anthony Perez. As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. Initially, the court notes, on January 23, 2023, the plaintiffs filed a request for dismissal of all parties and all causes of action without prejudice. (ROA 167.) The court's file does not show any subsequent activity in the case other than the instant motion to be relieved. It therefore unclear what

	attorney Rodriguez is referring to when she states in her declaration she has "encountered a conflict of interest" with Mr. Perez, given the case appears to have been inactive for years. There also is a question whether the court has any continuing jurisdiction in this matter in light of the dismissal and the lack of any pending proceedings. Notwithstanding the foregoing, there is insufficient proof Mr. Perez has been served with notice of this hearing and related documents. This motion was filed on April 28, 2026, and originally noticed for a hearing on August 13, 2026, in Department C13. On July 15, 2026, the court issued a Minute Order re-setting the hearing as follows: "On the court's own motion, the Motion to Be Relieved as Counsel of Record (ROA #180) is continued to 09/17/2026 at 02:00 PM in Department C23 to be heard by the Supervising Judge. "Clerk to give notice. <u>Moving counsel to give notice to their client.</u>" (Emphasis added.) There is no proof of service on file showing the client was given notice as required by the Court's Minute Order. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. Moreover, attorney Rodriguez' statement regarding service in her declaration at ROA 176 is lacking. In counsel's declaration in support of the motion, she states at paragraph 3(b) that she confirmed the client's address by "Review of client file and most recent court docket entries reflecting client's last known address, with no indication of a change of address and no returned mail." There is no indication as to what documents were reviewed in the client file upon which counsel relied. For example, the last correspondence may have been 3 ½ years ago and without knowing when the last correspondence was sent, the manner in which it was sent and whether the correspondence was sent with tracking, one can't determine if counsel's statement that there has been "no returned mail" is of any relevance. Accordingly, because there is no proof of service of the date and time of the hearing and the efforts made to confirm the client's address are insufficient, the motion is DENIED WITHOUT PREJUDICE.
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		Attorney Rodriguez is ordered to give notice of this ruling.
6.	<i>Contreras vs. Ace Restoration & Construction, Inc.</i> 2022-01247671	Before the court is the continued hearing on the unopposed motion of plaintiff Carla Contreras (Plaintiff) to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6. This motion originally came on for hearing on August 20, 2026, prior to which the court posted a tentative ruling to grant the motion, in part. Although defendants Ace Restoration & Construction, Inc., Cheree Nichelle Ray, and Shelby Lynn Cordova (collectively, Defendants) did not file any opposition, defendants Ray and Cordova appeared at the hearing. They asserted, although they had missed some payments, they intended to perform and Plaintiff had not properly credited them for all payments. Based on their request, the court continued the hearing to today's date to provide Defendants an opportunity to oppose the motion and present evidence to support their claims. As stated in the Minute Order from that hearing (ROA234), the court ordered Defendants to file any written opposition to the motion not later than September 1, 2026. The court also explained defendants Ray and Cordova could represent themselves by defendant Ace Restoration & Construction, Inc. could only appear through counsel. Despite giving Defendants this opportunity, they failed to file any opposition or declarations. In the instant motion, Plaintiff seeks an order enforcing the settlement agreement entered into between Plaintiff and Defendants by entering judgment against Defendants and compelling them to execute valid and properly notarized documents including the required Deed of Trust, appointing an elisor to execute such documents if Defendants fail to comply, and awarding attorney fees and costs against Defendants. As more fully set forth below, the motion is GRANTED. During 2024 when the parties' entered into the settlement agreement and Plaintiff dismissed this action, Code of Civil Procedure section 664.6, subdivision (a), stated, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."